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On Understanding the Incomprehensible – I

The editorial “Understanding the Incomprehensible” (EPW, 29 December 2012) on the brutal gang rape of a young woman and the vicious attack on the young man accompanying her is disquieting for several reasons. For a journal that usually does not see any other event or issue as “incomprehensible”, and has taken strong stands against state, class, communal, and caste violence against the margins in our society, why has this expression of violence against a woman suddenly become incomprehensible? There have been innumerable cases of stripping, parading a naked woman, and gang rape in rural and urban India that have hit the public domain, at least since the campaign around Mathura, which have been brutal too. Mention may also be made of the cases of Manorama in Manipur, the Khairlanji murder of two dalit women in Maharashtra, and Meena Xalxo and Soni Sori in Chhattisgarh. The women’s movement has confronted and written about such ghastly acts of sexual violence, thus rendering the phenomenon comprehensible in many different locations, from the home to the neighbourhood, and from the streets to the frontiers of the nation.

As women in both rural and urban India have been victims of a continuum of sexual assault – from lewd remarks at one extreme to rape at the other – what is truly incomprehensible is the editorial’s repeated suggestion that the present case is somehow exceptional. By insisting on the rarity of this case, and further, by setting it apart from pre-planned assaults on women during communal or caste violence because there was “nothing premeditated” about it, the editorial bypasses the ongoing application of male power by ordinary men as well as police and military personnel that all too often culminates in spectacles of sexual violence. The impunity enjoyed by the perpetrators of these heinous assaults may well be responsible for the brazenness with which sexual assaults are happening with sickening frequency now.

The editorial quotes a report to the effect that “the accused declared that

the whole incident was triggered by their anger at the defiance shown by the woman in defence of her male friend”. Cited without critical comment, the statement almost suggests that the young woman somehow spontaneously triggered off the brutal response, including the gross sexual torture, culminating in her death. That is unfortunate indeed.

Uma Chakravarti

NEW DELHI

II

The editorial has left us dumbfounded. Placing the Delhi gang rape in the realm of incomprehensibility is itself reinscribing a mystification and essentialist barbarity (the “primitive”) both of which are very unhelpful in understanding and opposing it and indeed feed right into the equally barbaric calls for death penalty and castration.

There is a comparison that can be made between the rapes and mutilations of women’s bodies in Gujarat in 2002 and this rape, and both are equally premeditated. Both are premised on the idea that the humiliation/violation of a community (Muslims, women) is best done through sexual violence.

It was not the “people’s movements” but specifically the women’s movement (not just “women’s groups”) that in the 1970s and 1980s protested sexual harassment and indeed all forms of sexual violence. The struggles over the decades have produced a very sophisticated language within the women’s movement in tackling sexual violence both within and outside the law.

The editorial repeats the classist bias against lower class and lower caste men through its point about vehicles and rape. In posting the crime as rare and unfathomable and our reasoning as tentative and frail, the editorial does disservice to decades of feminist analysis that has shown us exactly what is involved in rape and what needs to be done.

Your subsequent editorial of 5 January 2013 makes equally problematic links between child sex ratio, sex-selective abortion and the health of girls on the one hand and the rape case on the other. Instead of speaking of the need for “a deeper interrogation

of the values that govern Indian society” what would have been more helpful was an account of the long battle the women’s movement has had and continues to have on rape laws and rape cases.

Ranjana Padhi, Ashley Tellis

NEW DELHI

III

The editorial repeats a tired and biased binary claim: primitive/civilised. The words “primitive”, “barbaric” and “animal” have found much currency in the past few weeks. The humanist tradition, which the editorial follows, has come under philosophical criticism in the last 50 years. To make the “human” a stable category involves two violent acts. Animals become the undesired other over whom we try to establish control and separation. This representation also serves to designate some acts and individuals as animal within the human, a convenient and productive gesture that keeps this violent structure in place, only to be constantly haunted by the swell of animality of the human condition.

Law safeguards the human and prizes punishment. The desire for punishment as such, and particularly in a prison reflects the vanishing point or blind spot of rational discourse. We must call for a new ethics. This, as philosopher Giorgio Agamben has shown, cannot be derived from juridical notions such as guilt, responsibility or accountability. Violent encounters bring us face to face with the human as such. This frightening prospect may induce an ethic of shame at the human, inducing us to revise such a vocation and anticipating different possibilities.

“Incomprehensible” is a euphemism (for the unsayable), and the euphemism’s semantic root means “adoration in silence”. Clearly, language creates precarious life worlds. As we calculate the outcomes of the lives of those we brand criminal, we may want to take a look at the anti-humanist scholars, criminals in their own right, for their slow and painstaking attempts to suspend judgment.

Ammel Sharon

MANGALORE

EPW has always emphasised the need for study and reflection before expressing an opinion. The editorial of December 29 sought to emphasise

that sexual violence against women is a common phenomenon in Indian society, which women’s groups first brought to the notice of people’s movements in the mid-1970s. (These campaigns led to the emergence of the women’s movement by the end of that decade.) The editorial highlighted in particular the commonplace – the sexual violence by security forces, employers, rural landlords, and the family. The burden of the argument was that we need to understand the Delhi gang rape in terms of its extreme brutality so that the struggle against the commonplace is not lost sight of.

No comment was implied nor should anything be inferred in the reference to the accused’s claims of anger at the woman’s defence of her male friend. However, in retrospect, the use of the terms “primitive” and “bestial” in the editorial of 5 January could have been avoided.

The journal seeks a continuing discussion in its pages on how to understand and combat sexual violence.

– Ed.

Strategy to Deliver RTE

Representatives of teacher unions, civil society activists and educationists from 24 states met in Bhubaneswar on 19-20 December 2012 under the banner of the Right to Education (RTE) Forum and All India Primary Teachers’ Federation (AIPTE) to discuss how to deliver equitable, quality education for all children. The convention resolved to demand from the government, among other things, that:

- (1) The RTE Act must be extended to include early childhood care and education.
- (2) Six per cent of GDP must be allotted to education.
- (3) Protect all school spaces from being privatised, including through public-private partnerships.
- (4) All teacher posts be filled with qualified, trained teachers and ensure the RTE norm of pupil-teacher ratio of 1:30 at primary and 1:35 at upper primary level.
- (5) Every untrained teacher within the system must be trained as per National Council of Teacher Education recommendations; no untrained teacher should be recruited after the 2015 RTE deadline.
- (6) Teacher education must be revamped to provide orientation on various aspects of RTE.

- (7) Every school must have democratically constituted school management committees (SMCs) with full powers.

(8) Curricula and syllabi be revamped to ensure they are free of bias, with special emphasis on addressing discriminatory practices against dalits, tribals, Muslims, girls, children with disability and other marginalised groups.

To press for the above demands, the RTE Forum and teacher unions resolved to undertake the following actions:

- (1) Jointly initiate a people’s movement and renew people’s contact to generate nationwide debate and demand for equitable quality education.
- (2) Teachers, civil society organisations and federation of SMCs to form a pressure group for change.
- (3) Systematically support local-level teachers and activists in school education to create a joint cadre of people committed to the principles of equitable, quality, free and compulsory education.
- (4) Work together to remove the elitist and exclusionary nature of private schools and work towards a common school system.
- (5) Work jointly to explore and seek legal measures to strengthen RTE for all children.
- (6) Recognise and award heroic contributions to education made by teachers and community activists.
- (7) Work together to generate local materials and promote curriculum that is democratic, secular, geo-cultural, language specific with community engagement.

Teachers form the backbone in any effort to provide education and teacher agency and creativity must have space to its fullest potential; civil society organisations have the potential to influence policy and reach out to people. Together we can fight increasing privatisation and commercialisation of education that puts the hopes of children from poor and marginalised communities at risk.

S Eswaran, General Secretary, AIPTE
Ambarish Rai, Convenor, RTE Forum
 BHUBANESWAR, ODISHA

Web Exclusives

The following article has been uploaded in the past week in the Web Exclusives section of the EPW website. It has not been published in the print edition.

Read it at <http://epw.in>

“The Need for an Everyday Culture of Protest” – *Rukmini Sen*

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